

COMPLAINT NO. 1061-20-0107

IN THE MATTER OF

KIMBERLEY BUCKNER-MANLEY

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BEFORE THE TEXAS BEHAVIORAL  
HEALTH EXECUTIVE COUNCIL

THE TEXAS STATE BOARD  
OF EXAMINERS OF  
PROFESSIONAL COUNSELORS

AGREED ORDER

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **KIMBERLEY BUCKNER-MANLEY** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor (#69916) in the State of Texas and is, therefore, subject to the jurisdiction of the Council.
2. Respondent counseled the minor clients at issue (the "Clients") while they were seeing another counselor. Respondent failed to contact or collaborate with the other counselor.
3. Respondent failed to provide records after they were requested by the mother of the Clients.
4. Respondent failed to obtain informed consent for treatment from the mother of the Clients, pursuant to the divorce decree governing the treatment of the Clients.
5. Respondent failed to follow the divorce decree governing the treatment of the Clients.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§503.401, 507.301, and 507.351 of the Texas Occupations Code.

3. Based on the above Findings of Fact, the Council finds that Respondent violated 22 Tex. Admin. Code §§ 681.41(e), 681.41(n), 681.41(u), and 681.41(v).
4. This Agreed Order is a Settlement Agreement under the Texas Rules of Evidence and is not admissible for the purposes of civil litigation. By entering into this Agreed Order, Respondent does not admit the foregoing Findings of Fact or Conclusions of Law, but agrees to resolve this matter to avoid the expense and uncertainty of further proceedings.

#### **ORDER**

#### **IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:**

1. Respondent's license is hereby REPRIMANDED.

#### **WARNING**

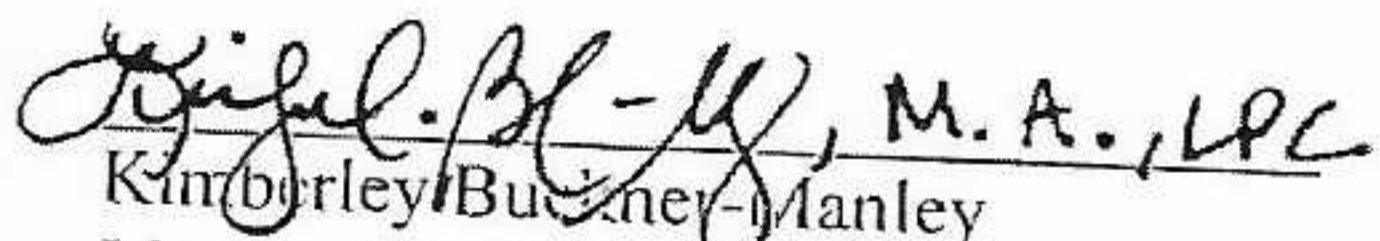
**RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.**

#### **WAIVERS**

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

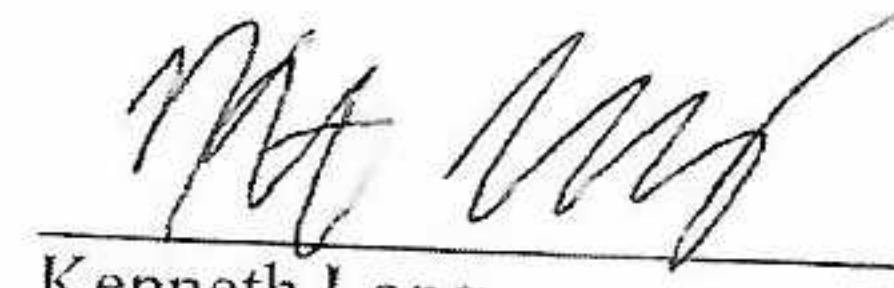
THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:

  
Kimberley Buckner-Manley  
Licensed Professional Counselor  
License Number 69916

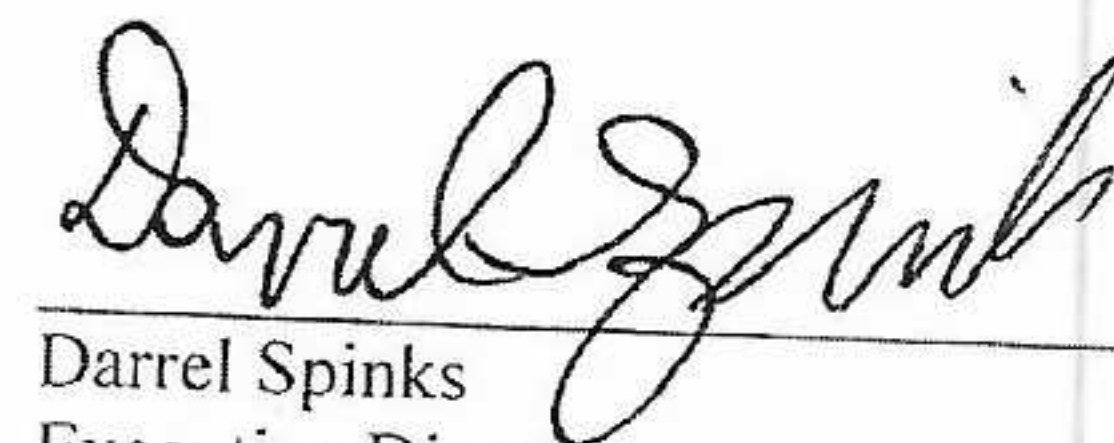
DATE SIGNED: 10/16/2023

FOR THE STAFF OF THE COUNCIL:

  
Kenneth Long  
Texas Bar No. 24078877  
Staff Attorney  
Texas Behavioral Health Executive Council  
1801 Congress Ave., Suite 7.300  
Austin, TX 78701

DATE SIGNED: 10/23/2023

APPROVED, RATIFIED, AND ENTERED THIS 23rd DAY OF October, 2023.

  
Darrel Spinks  
Executive Director  
Texas Behavioral Health Executive Council